

ORIGINAL

(S E R V E D)
(November 12, 1999)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

November 12, 1999

DOCKET NO. 99-16

CAROLINA MARINE HANDLING, INC.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY, ET AL.

**MOTION OF CAROLINA MARINE HANDLING, INC.
FOR LEAVE TO FILE AN AMENDED COMPLAINT GRANTED**

Carolina Marine Handling, Inc. ("CMH") has filed a motion for leave to file an amended complaint which accompanies the motion. CMH states that the purpose of the amendment is to add material matters and allegations that were presaged on the original complaint and which now have transpired; that the new developments, giving rise to new and different allegations of the Shipping Act of 1984 ("1984 Act") violations, could not have been fully raised in the original complaint; that the amended complaint supercedes the original complaint; that respondents will not be prejudiced by amendment of the complaint, since none of the respondents has filed a response

to the original complaint; that the new matters and allegations relate to circumstances set forth in the original complaint; and that respondents are thereby fully on notice as to CMH's allegations.

CMH states that the amendments to CMH's complaint relate primarily to the circumstances described in Paragraphs IV DD to QQ of the original complaint concerning the lease between South Carolina State Ports Authority ("SPA") and Charleston International Projects, Inc. and Charleston International Ports, LLC (collectively, "CIP"); that this lease was finally executed after the original complaint was filed, and the amended complaint newly alleges violation of section 5 of the 1984 Act, 46 U.S.C. app. § 1704.

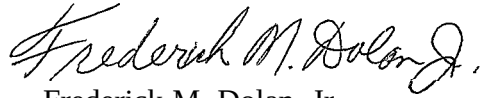
CNH requested that the amended complaint be served by the Commission. However, at my request, counsel for CMH contacted counsel for respondents and received confirmation that they would accept service of the amended complaint attached to the motion. Thus additional service of the amended complaint by the Commission is unnecessary in this time of budgetary restraint.

There is ample precedent for granting the motion and permitting the filing of the amended complaint. *See Holt Cargo Systems, Inc. et al. v. Delaware River Port Authority, et al.*, Motion to Amend Paragraph V of the Complaint. . . Granted, Docket No. 96-13, 28 S.R.R. 432, 436-437 (ALJ, 1998), and *The Board of Commissioners of the Port of New Orleans v. Kaiser Aluminum and Chemical Corporation, et al.*, Motion for Leave to Amend Complaint Granted, Docket No. 98-01, 28 S.R.R. 337 (ALJ, 1998). Responses to the amended complaint will be due on December 3, 1999, and complainant may reply on January 18, 2000.

IT IS ORDERED:

The amended complaint of Carolina Marine Handling, Inc. is accepted for filing pursuant to 46 C.F.R. §§ 502.10, 502.70(b) and 502.147. (Since the amended complaint was served with the

motion, additional service of the amended complaint is unnecessary.) Answers and motions in regard to the amended complaint shall be filed on or before December 3, 1999. Complainant's reply shall be filed on or before January 18, 2000.

A handwritten signature in cursive script, reading "Frederick M. Dolan, Jr.", written in black ink.

Frederick M. Dolan, Jr.
Administrative Law Judge